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Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
ESTT.(Pay-II)

(Dated 30 September, 2022)

OFFICE MEMORANDUM

Combination of appointments (FR 49)

Department of Personnel & Training (DoP&T) has issued instructions from time to time regarding combination of appointments for holding charge of one or more posts and regulation of pay in such cases. These instructions incorporated in Fundamental Rule 49 {FR 49} have been consolidated hereunder for reference and guidance:

(A) Provisions of FR 49

The Central Government may appoint a Government servant already holding a post in a substantive or officiating capacity to officiate, as a temporary measure, in one or more of other independent posts at one time under the Government. In such cases, his pay is regulated as follows: -

(i) Where a Government servant is formally appointed to hold full charge of the duties of a higher post in the same office as his own and in the same cadre/line of promotion, in addition to his ordinary duties, he shall be allowed the pay admissible to him, if he is appointed to officiate in the higher post, unless the Competent Authority reduces his officiating pay under Rule 35; but no additional pay shall, however, be allowed for performing the duties of a lower post;

(ii) Where a Government servant is formally appointed to hold dual charges of two posts in the same cadre in the same office carrying identical scales of pay, no additional pay shall be admissible irrespective of the period of dual charge provided that, if the Government servant is appointed to an additional post which carries a special pay, he shall be allowed such special pay;

(iii) Where a Government servant is formally appointed to hold charge of another post or posts which is or are not in the same office, or which, though in the same office, is or are not in the same cadre/line of promotion, he shall be allowed the pay of the higher post, or of the highest post, if he holds charge of more than two posts, in addition to ten per cent of the presumptive pay of the additional post or posts, if the additional charge is held for a period exceeding ¹[45] days but not exceeding 3 months provided that if in any particular case, it is considered necessary that the Government servant should hold charge of another post or posts for a period exceed 03 months, the concurrence of the ¹[Department of Personnel and Training] shall be obtained for the payment of additional pay beyond the period of 03 months;

(iv) Where an officer is formally appointed to hold full additional charge of another post, the aggregate of pay and additional pay shall in no case exceed ²[Rs. 2,25,000];

(v) No additional pay shall be admissible to a Government servant who is appointed to hold

current charge of the routine duties of another post or posts irrespective of the duration of the additional charge;

(vi) If compensatory or sumptuary allowances are attached to one or more of the posts, the Government servant shall draw such compensatory or sumptuary allowances as the Central Government may fix provided that such allowances shall not exceed the total of the compensatory and sumptuary allowances attached to all the posts.

1. Substituted vide [DoP&T's Notification No. 4/3/97-Estt. \(Pay-II\) dated 12.03.1999](#) published as G.S.R. 208 (E) in the Gazette of India dated 15.03.1999 and took effect from that date.
2. Substituted vide by [DoP&T's Notification No. 4/2/2016-Estt. \(Pay-II\) dated 12.06.2017](#) published as G.S.R. 213 in the Gazette of India dated 12.06.2017 and took effect from 01.01.2016.

(B) Guidelines on additional charge of the current duties of another post

As per FR 49 (iv), no additional pay is admissible to a Government servant who is appointed to hold current charge of the routine duties of another post irrespective of the duration of the additional charge. However, in a number of cases, officers are appointed to hold additional charge of current duties of another post but the duties are not defined in the order. As a result, the officer performs all the functions of the other post including even some statutory functions. But no additional remuneration is paid in view of the specific language of the order of his appointment. In certain other cases, an officer is asked to hold additional charge of another post, which implies full charge of the other post, but he is not formally appointed to that post. Therefore, no additional remuneration is paid to him under FR 49.

2. Entrusting the additional charge of another post to an officer shall be governed by the following guidelines:

(i) When an officer is required to discharge all the duties of the other post including the statutory functions, steps should be taken to process the case for getting the approval of the Competent Authority and formal orders appointing the officer to the additional post should be issued. On appointment, the officer should be allowed additional remuneration as indicated in FR 49.

(ii) Where an officer is only required to attend to the usual routine day-to-day work of non-statutory nature attached to the post, an office order may be issued clearly stating that the officer will be performing only the routine day-to-day duties of non-statutory nature and that he would not be entitled to any additional remuneration. The office order should also specify what duties he would be discharging or what duties he would not be discharging.

[\[DoP&T's O.M. No. 4/2/89-Estt. \(Pay-II\), dated the 11.08.1989\]](#)

(C) No additional pay for holding additional charge of posts in PSUs / Autonomous Bodies, etc.

FR 49 empowers the Central Government to appoint a Government servant already holding a post in a substantive or officiating capacity to officiate, as a temporary measure, in one or more of other independent posts at one time "under the Government." The Rule also stipulates the circumstances and the extent to which the Government servant shall be entitled to additional

pay on formal appointment to hold full additional charge of another post under Government.

2. Neither the appointments of Government servants to hold the full additional charge of the posts in the PSUs, Autonomous Bodies, etc. nor the additional pay for holding additional charge in such cases is permissible under FR-49.

3. The posts in PSUs, Autonomous Bodies are advised to be filled up only by regular incumbents and the occasions for appointing Government servants to hold additional charge of such posts should be resorted to in rare and exceptional circumstances as a stopgap arrangement for a short period only.

[\[DoP&T's O.M. No. 4/4/99-Estt. \(Pay-II\) dated 28.01.2000\]](#)

(D) Clarifications regarding application of FR 49:

With a view to ensure that the provisions of FR 49 are applied in public interest and the spirit of FR 49 is maintained, Ministries /Departments should keep the following in view while processing cases for giving additional charge -

- (i) Provisions of FR 49 apply only to Government servants. Appointments of an employee of an Autonomous Body / PSU etc., to another such body would be governed by the Rules of the individual's employer;
- (ii) Provisions of FR 49 are applicable to cases where the post held by the Government servant and the post to which he is appointed are under the Government;
- (iii) Additional pay for holding additional charge of the posts in PSUs, Autonomous Bodies etc., is not permissible under FR 49;
- (iv) Appointments made under FR 49 should follow the spirit of the FR to meet short-term requirements only and it may be ensured that the provisions are not used to indirectly confer promotional benefits in lieu of promotion;
- (v) Instructions of Ministry of Finance issued vide O.M. No.7(7)-E.Coord./93 dated 03.05.1993 read with O.M. No.7(4)/E.Coord.(I)/2001 dated 27.03.2001 regarding 'economy in administrative expenditure — guidelines for abolition of posts' may be kept in view so that approval of Ministry of Finance for revival of post(s) is obtained wherever necessary before assigning the additional charge of posts;
- (vi) While the language of FR 49 provides for appointment to a higher post, no occasion for appointing a Government servant to a post next above or even higher than the post next in hierarchy should arise. Such appointments may not be made without the approval of DoP&T;
- (vii) Though appointments covered under FR 49(i) are not promotion, Government servant so appointed gets the pay of the higher post. While it may not be necessary to go strictly by seniority in making such stopgap arrangements, as far as possible the senior most officer holding the lower post in the Department may be so appointed. Suitability of the officer for discharging functions of the post should also be assessed. If the post requires any specialized skill / experience / training, the person most suited for the task may be appointed;
- (viii) No person who is facing disciplinary proceedings or is otherwise not suitable (for example who has an adverse entry in a recent APAR) should be given the additional charge.
- (ix) The orders for appointments may be issued only after obtaining the approval of the authority competent to make appointments to the post.

[\[DOP&T's OM. No. F. No. 4/2/2014-Estt. \(Pay-II\), dated the 16.04.2015\]](#)

Note: In case any reference to the relevant OM is required, the same may be accessed by clicking on the hyperlink or from the DOPT's website. **A list of the OMs mentioned in this document is as under:**

1. [DoP&T's O.M. No. 4/2/89-Estt. \(Pay-II\), dated the 11.08.1989](#)
2. [DoP&T's Notification No. 4/3/97-Estt. \(Pay-II\) dated 12.03.1999](#)
3. [DoP&T's O.M. No. 4/4/99-Estt. \(Pay-II\) dated 28.01.2000](#)
4. [DOP&T's OM. No. F. No. 4/2/2014-Estt. \(Pay-II\), dated the 16.04.2015](#)
5. [DoP&T's Notification No. 4/2/2016-Estt. \(Pay-II\) dated 12.06.2017](#)
